

effect upon third parties, every Court and every jury would presume an assent" (*d*).

3. **Recitals.** — If the trustee execute the deed, he should see that the recitals are correct; or the Court may hold him liable for the consequences. However, in a late case (*e*), where it was recited in a marriage settlement that the lady was possessed of a sum of stock, which subsequently was not forthcoming, Lord Langdale said, there were so many instances of parties representing that they were entitled to particular property, which representation afterwards turned out to be wholly untrue, that it would be unjust and dangerous to bind third parties by such representations; and that he did not therefore accede to the argument, that the recital alone bound the trustees. And in another case where a release from the *cestuis que trust* to the trustees stated that the legacy duty amounted only to £19. 8s., whereas it was much more, Lord Romilly said it was a mistake of all parties, and that the trustees were not estopped by it in equity (*f*).

4. **Of acceptance by acting in the trust.** — What *acts* of a person nominated as trustee will amount to a *constructive* acceptance of the office, is a question constantly arising, and not easily to be determined by any general rule.

5. **Effect of probate.** — If a person named as executor takes out *probate* of the will, he thereby constitutes himself executor, and incurs all the liabilities annexed to the executorship (*g*). The *renunciation of probate* by a
* person named as executor and trustee is not in [*202]

(*d*) *Wise v. Wise*, 2 Jones & Lat. 403; see 412; and see *White v. M'Dermott*, 7 I. R. C. L. 1.

(*e*) *Fenwick v. Greenwell*, 10 Beav. 418. I have been informed by one of the counsel in the cause that in *Bliss v. Bridgewater*, at the Rolls, many years ago, Sir J. Leach held that trustees were bound by a recital that stock had been transferred into their names; and see *Gore v. Bowser*, 3 Sm. & G. 6; *Chaigneau v. Bryan*, 8 Ir. Ch. Rep. 251; *Story v. Gape*, 2 Jur. N. S.

706; *Westmoreland v. Holland*, 23 L. T. N. S. 797; 19 W. R. 302, affirmed W. N. 1871, p. 124.

(*f*) *Brooke v. Haynes*, 6 L. R. Eq. 25.

(*g*) *Booth v. Booth*, 1 Beav. 125; *Ward v. Butler*, 2 Moll. 533, *per* Lord Manners; *Styles v. Guy*, 1 Mac. & G. 431, *per* Lord Cottenham; *Scully v. Delany*, 2 Ir. Eq. Rep. 165. The case of *Balchen v. Scott*, 2 Ves. jun. 678, cannot be considered as law.